

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE TEMPORARY JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38:

[Court Calendars | Superior Court of California | County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 21, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

1. **MSP21-01395 ESTATE OF: MORGAN BRUNTON-KNOWLES**
9:00 AM HEARING IN RE: FIRST AND FINAL REPORT; PETITION FOR COMPENSATION; REIMBURSEMENT OF COSTS; FINAL DISTRIBUTION FILED ON 08/15/25 BY LAURENCE L. BRUNTON

Need:

1. Evidence of appointment of guardian of estate of minor beneficiary Alec Harrison. Father Clayton Harrison is guardian *ad litem* only.
2. Verified declaration by petitioner to specify whether all charges for legal advertising, bond premiums, probate referee's services and costs of administration have been paid. LR 7.317
3. Revised, proposed Order as needed in resolution of above

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 21, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

2. 9:00 AM	MSP21-01598 ESTATE OF: BERTHELLA JEFFERSON HEARING IN RE: PETITION FOR FIRST & FINAL DISTRIBUTION FOR THE ESTATE OF BERTHELLA JEFFERSON & WAIVER OF ACCOUNT/WAIVER OF NOTICE OF HEARING FILED ON 8-19-25 BY ERIC JEFFERSON & ALANNA MCKINNEY Petitioners still must do the following: 1. Appear at the hearing 2. File evidence of payment of filing fees. Orders on Court Fee Waiver filed 10-14-2021. 3. Verify Petition under penalty of perjury. PrC § 1021. CCP § 2015.5. CRC 7.103 4. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice, including Franchise Tax Board who requested special notice, and file a Proof of Service with court. 5. File a verified declaration with Creditor Claims fully listed in Petition including date filed. PrC § 10900; CRC § 7.403 6. File Satisfaction of creditor's claims; otherwise, petitioner will have to give written notice of rejection (Judicial Council form DE-174) and then creditor would have 3 months from date of notice to act. PrC § 9353 7. File a verified declaration in compliance with CRC 7.250 regarding any acts taken under IAEA w/notice of proposed action. (Specifics needed or statement that no action was taken) 8. File Waiver of Accounting by Eric Jefferson or Accounting that complies with PrC § 1060 <i>et seq.</i> 9. File verified declaration of petitioner showing compliance with Probate Code § 11005, unless account is waived 10. File verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705. 11. File a verified declaration to include list of expenses for which petitioner is requesting reimbursement as indicated in proposed Order at page 3, ¶ 3. 12. Submit a revised, proposed Order as needed in resolution of above and that includes amount of statutory compensation and expenses for which petitioner is requesting reimbursement
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SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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3. **MSP21-01788 THE WILLIAM ISAMU MIZONO & DOROTHY T MIZONO REVOCA**
9:00 AM HEARING IN RE: PETITION FOR APPROVAL OF FIRST AND SECOND REPORT AND ACCOUNT OF
TRUSTEE FILED BY JOHN BALQUIST ON 01/12/26

Need appearances

The Court is waiting for these items:

Report of atty. Oliver Greenwood, guardian *ad litem* for Dorothy Toshiko Mizono

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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COURT CALENDAR FOR MAY 21, 2026
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- 4.** **MSP22-00049** **ESTATE OF: GEORGE H. GREER**
9:00 AM HEARING IN RE: PETITION FOR FINAL DISTRIBUTION ON WAIVER OF ACCOUNT, FOR ALLOWANCE OF COMMISSIONS, ATTORNEY'S STATUTORY FEES & COSTS ADVANCED FILED ON 1-9-26 BY RANDOLPH GREER
- Need:
1. Verified declaration by petitioner to state why status report was not filed within 12 months as required by PrC § 12200(b)
 2. Proof of mailing to Jonathan Greer at address in petition or waiver of notice. Proof of Service attached to Notice filed 4-20-2026 reflects mailing to him at an address other than that listed in petition.
 3. Itemized receipt schedule if receipts are to be included in statutory fee calculation. CRC § 7.550(b)(6)
 4. Verified declaration by petitioner to clarify value of assets on hand for distribution. Amount at page 6, ¶21 reflects \$743,541.63; proposed Order states \$743,473.39.
 5. Revised, proposed Order as needed in resolution of above and to correct amount of statutory fees

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 21, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

5A.

9:00 AM

P23-01158

ESTATE OF: GARRY NICHOLAS

HEARING IN RE: PETITION FOR PROBATE OF WILL FILED WITH IAEA FILED BY KRAIG NICHOLAS ON 06/05/2025

On the court's own motion, this matter is CONTINUED to September 15, 2026, at 9:00 a.m.

When to proceed, will Need:

1. Appearances to report status
2. Verified declaration by petitioner to include pages 2-3 of petition, not attached
3. Proof of mailing to Franchise Tax Board who requested special notice. PrC § 1202
4. Verified declaration by petitioner to include Attachment 3.f.(2) (copy of will), not attached as indicated. PrC § 8002
5. Order for Probate Form DE-140

Notes:

1. Letters Testamentary issued to Mary Walsh 12-26-2024.
2. Court will re-review petition upon receipt of pages 2-3. It is unclear which will is requested to be admitted. Pages 2-3 of petition are missing and no copy is attached to petition.
3. Bond will be fixed at fair market value of estate, if needed.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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COURT CALENDAR FOR MAY 21, 2026
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5B. **P23-01158** **ESTATE OF: GARRY NICHOLAS**
9:00 AM HEARING IN RE: MOTION TO ENFORCE SETTLEMENT AGREEMENT FILED ON 3-12-25 BY NICHOLAS KRAIG

On the court's own motion, this matter is CONTINUED to September 15, 2026, at 9:00 a.m.

Need appearances to report status of settlement

Notes:

1. Receipt and Acknowledgment of Settlement Funds filed 6-10-2025.
2. Per 7-24-2025 minute order, court ordered atty. Housman to file a written objection by 9-8-2025.
3. Mary Walsh's Objection filed 9-8-2025.

5C. **P23-01158** **ESTATE OF: GARRY NICHOLAS**
9:00 AM HEARING IN RE: PETITION FOR REMOVAL OF MARY WALSH AS ADMINISTRATOR OF THE ESTATE FILED BY KRAIG NICHOLAS ON 05/15/2025

On the court's own motion, this matter is CONTINUED to September 15, 2026, at 9:00 a.m.

Need:

1. Appearances to report status
2. Proof of mailing to Franchise Tax Board who requested special notice. PrC § 1202
3. Proposed Order

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
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8.

P24-00150

ESTATE OF: MARC LENK

9:00 AM

HEARING IN RE: FIRST AND FINAL REPORT OF EXECUTOR FILED BY RAE LENK-ECKHOLM ON
08/19/2025

Need:

1. Appearances
2. Evidence of appointment of minor beneficiaries' parents as guardian of each minor's estate or Accounting that complies with PrC § 1060 *et seq.*
3. Revised, proposed Order if needed in resolution of above

Note: Minor beneficiaries cannot waive account. Parents, as such, are the natural guardians of the person of their children, not of their estates; they have no authority to waive accounting on behalf of their children.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 21, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

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9:00 AM | <p>P24-02133 ESTATE OF: LAURA GLENNE WILLSON</p> <p>HEARING IN RE: STATUS REPORT IN LIEU OF FIRST AND FINAL WAIVER OF ACCOUNT, REPORT AND PETITION FOR DISTRIBUTION AND FOR ALLOWANCE OF FEES AND COSTS ADVANCED AND PETITION FOR ORDER GRANTING ADDITIONAL TIME FOR ESTATE ADMINISTRATION TO BE COMPLETED (PROBATE CODE SECTION 12200) FILED BY SUZANNE L WILLSON HENDRICKS ON 01/09/2026</p> <p>Need:</p> <ol style="list-style-type: none">1. Verified declaration by petitioner to state current addresses of all persons entitled to receive notice so court can confirm mailing. LR 7.1122. Verified declaration by petitioner to state whether notice was given, or needed, to the Director of the California Victim Compensation Board, i.e., does petitioner have any reason to believe any heir <u>has previously been confined</u> in any prison or other correctional facility. PrC §§ 216, 9202(b) |
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SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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10A. P24-02187 MATTER OF: LAURENCE O. AND JOANN M. CLARK FAMILY TRUST, DATED MAY 10, 2000, AS AMENDED-SURVIVOR'S TRUST

9:00 AM HEARING IN RE: PETITION FOR INSTRUCTIONS TO 1) DETERMINE CONSTRUCTION OF TRUST INSTRUMENT AND 2) DIRECT THE TRUSTEE TO STAY DISTRIBUTION UNTIL RESOLUTION OF THE REFORMATION PETITION FILED ON 12/10/24 BY ROGER CLARK

Need appearances

Notes:

1. Trustee Larry Clark's Response filed 8-27-2025.
2. Response to Roger Clark's Petition filed by Peggy Jo Hilburn 1-12-2026.

10B. P24-02187 MATTER OF: LAURENCE O. AND JOANN M. CLARK FAMILY TRUST, DATED MAY 10, 2000, AS AMENDED-SURVIVOR'S TRUST

9:00 AM HEARING IN RE: AMENDMENT AND SUPPLEMENT TO ROGER CLARK'S PETITION FOR INSTRUCTIONS FILED BY ROGER CLARK ON 4/11/2025

See Line 10A

Need appearances

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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10C. P24-02187 MATTER OF: LAURENCE O. AND JOANN M. CLARK FAMILY TRUST, DATED MAY 10, 2000, AS AMENDED-SURVIVOR'S TRUST

9:00 AM HEARING IN RE: PETITION TO REFORM TERMS OF TRUST TO CONFORM TO SURVIVING SETTLOR'S INTENTIONS FILED BY PEGGY JO HILBURN ON 01/12/26

Need:

1. Appearances
2. Proposed Order

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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13. 9:00 AM	P25-01070 ESTATE OF: BRAD DEXTER HEARING IN RE: PETITION FOR AN ORDER TO DETERMINE ENTITLEMENT TO DISTRIBUTION FILED BY JENNIFER WINSHIP ON 01/08/26 Need: Proposed Order
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SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 21, 2026
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14.

9:00 AM

P25-01432

ESTATE OF: MARTTI RAUHALA

HEARING IN RE: MOTION TO SET ASIDE JUDGMENT FILED BY JUHANI RAUHALA ON 1-12-26

On the court's own motion, this matter is CONTINUED to September 15, 2026, at 9:00 a.m. Notice is insufficient as reflected in the Proof of Electronic Service filed on April 27, 2026. Code of Civ. Proc. § 1005(b). Briefing on this Motion shall be per Code based on the continued hearing date of September 15, 2026.

When to proceed, Petitioner still must do the following:

1. Appear at the hearing (via Zoom is acceptable)
2. File Consent to Electronic Service and Notice of Electronic Service Address Form EFS-005-CV
3. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court, unless Consents filed.
4. Submit a proposed Order

Note: Letters of Administration issued to John Balquist 11-17-2025.